Hummel Group Inc
13489 COUNTY ROAD 16
PO BOX 433
MIDDLEBURY IN 46540-9537

North Indiana Emmaus Community Inc--Fort Wayne
C/O Maranda Tarr
1653 S 700 E
MARION IN 46953-9598

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13489 COUNTY ROAD 16
PO BOX 433
MIDDLEBURY IN 46540-9537

North Indiana Emmaus Community Inc--Fort Wayne
C/O Maranda Tarr
1653 S 700 E
MARION IN 46953-9598

1000 S Main Street
PO Box 300
Orrville, OH 44667
1-800-678-6885
www.mennonitemutual.com

Stewardship Protection Program Declarations

Renewal Dec

These Declarations replace all prior Declarations.

Mail To: North Indiana Emmaus Community Inc--Fort Wayne C/O Maranda Tarr 1653 S 700 E MARION, IN 46953-9598	**Named Insured(s):** North Indiana Emmaus Community Inc--Fort Wayne **Bill To:** Account Holder	**Agency:** Hummel Group Inc 13489 COUNTY ROAD 16 MIDDLEBURY, IN 46540-9537 (260) 768-4547

Term Effective Date: 08/01/25 12:01AM EST	**Term Expiration Date:** 08/01/26 12:01AM EST	**Payment Plan:** ACH-Annually	**Policy ID:** 400152342
Policy Wide Premium Modifications: Longevity Credit: (3 %); Loss Free Credit (5 %); Paid In Full Discount (3 %)		**Account Number:** 2005776	**Old Policy #:** CMP1300113
Policy Deductible: $1,000			

Annual Premium: $535

***This is not an invoice. Your invoice statement will be sent separately.
Please Note: Roofing Materials that are 15 or more years old are not eligible for replacement cost.

General Liability Coverages	**Limits**
Each Occurrence Limit (Applies to Coverages L, M, P and W)	$1,000,000
General Aggregate Limit	$2,000,000
Products/Completed Works Hazard Aggregate Limit	$2,000,000
Medical Payments Limit	$5,000
Fire Legal Liability Limit	$500,000
Damage to Property of Others	$500

Policy Wide Property Coverages	**Coverage Limit** ** Higher Limits Available*	**Deductible**	**Premium**
Accounts Receivable On Premises Off Premises	 $10,000* $5,000	 $1,000	 $0
Antennas, Fences, or Paved Surfaces	$10,000	$1,000	$0
Arson, Theft and Vandalism Reward 10% of a paid claim, up to:	 $25,000	 $0	 $0
Building Property -- Off Premises	$50,000	$1,000	$0
Building Personal Property - Outdoor Buildings	$10,000	$1,000	$0

OTHER COVERAGES, LIMITS, EXCLUSIONS, AND CONDITIONS APPLY. REFER TO YOUR POLICY FOR COMPLETE COVERAGE INFORMATION.

Business Personal Property -- Acquired Locations Each Building	$100,000	$1,000	$0
Business Personal Property -- Off Premises	$50,000	$1,000	$0
Business Personal Property -- Parsonage	$50,000	$1,000	$0
Business Personal Property -- Portable Storage Units	$10,000	$1,000	$0
Computer Fraud	$5,000*	$1,000	$0
Counterfeit Money or Money Orders	$25,000	$1,000	$0
Data Records and Programs Aggregate Limit	$10,000	$1,000	$0
Debris Removal	25% loss or damage + 25% of deductible	$1,000	$0
Elevator Collision 25% of Coverage A, not exceeding:	$50,000	$1,000	$0
Emergency Vacating Expense	$15,000	$1,000	$0
Employee Dishonesty	$50,000*	$1,000	$0
Fire Department Service Charges	$25,000	$0	$0
Forgery	$25,000	$1,000	$0
Fraudulent Funds Transfer	$5,000*	$1,000	$0
Inventory and Appraisal Expenses	$10,000	$0	$0
Key Individual Replacement Expense	$10,000	$1,000	$0
Limited Fungus and Related Perils Aggregate Limit	$50,000	$1,000	$0
Lock and Key Replacement	$10,000	$0	$0
Money and Securities	$50,000*	$0	$0
Newly Acquired Buildings	$500,000	$1,000	$0
Outdoor Buildings	$10,000	$1,000	$0
Outdoor Signs More than 1000' from the Described Premises	$10,000*	$1,000	$0
Personal Property Per Person: Per Occurrence:	 $1,500 $25,000	$1,000	$0
Personal Property - Clergy Per Clergy: Per Occurrence:	 $10,000 $25,000	$1,000	$0
Pollutant Clean Up and Removal (Each Described Premises)	$50,000	$1,000	$0
Premium Size Credit			$0
Recharge of Fire Extinguishing Equipment	$25,000	$0	$0
Spoilage	$10,000	$1,000	$0
Temporary Meeting Space	$5,000	$0	$0
Trees, Shrubs, Plants, and Lawns $1,000 Limit per Tree, Shrub or Plant	$5,000	$1,000	$0
Valuable Papers and Records On Premises Limit: Off Premises Limit:	 $50,000* $25,000	$0	$0
Coverage C -- Loss of Income/Extra Expense	Actual Loss Sustained		$0

Total Policy Wide Property Premium			$0

Policy Wide Liability Coverages	**Liability Limit** ** Higher Limits Available*	**Premium**

OTHER COVERAGES, LIMITS, EXCLUSIONS, AND CONDITIONS APPLY. REFER TO YOUR POLICY FOR COMPLETE COVERAGE INFORMATION.

Counseling Professional Liability Number of Counselors: 2 Fee Based? No	$1,000,000	$96
Cyber Liability ($0 Deductible, first dollar coverage) Multimedia Liability – Each Claim Security and Privacy Liability – Each Claim Privacy Regulatory Defense and Penalties – Each Claim PCI DSS Assessment Coverage – Each Claim Privacy Breach Response Costs – Each Claim Network Asset Protection – Each Claim Cyber Extortion – Each Claim Cyber Terrorism – Each Claim BrandGuard – Each Claim Annual Aggregate Limit Retroactive Date: 08/01/2019 Extended Reporting Period: 60 Days	 $100,000 $100,000 $100,000 $100,000 $100,000 $100,000 $100,000 $100,000 $100,000 $100,000 $100,000	$120
Directors and Officers Liability	$1,000,000	$105
Fire Legal Liability	$500,000	$100
Limited Pollution Liability Extension Aggregate Limit	$10,000*	

Total Policy Wide Liability Premium		$421

Policy Forms and Endorsements:

BP 0418 09 21	Amendatory Endorsement - Indiana
BP 0734 01 04	Lead Liability Exclusion
BP 0750 01 15	Certified Terrorism Loss
BP 0796 07 13	Pollutants -- Amended Definition
CHP DEC	Declaration
CL 0605 01 15	Certified Terrorism Loss Disclosure of Premium andFederal Share of Insured Losses
MM 100 10 06	Policy Revision – Insuring Agreement
SPP 029 01 19	Directors and Officers Liability Coverage
SPP 050 01 19	Counseling Professional Liability Coverage
SPP 098 01 25	Cyber Liability Endorsement
SPP 100 01 22	Stewardship Protection Program Policy
SPP 114 06 21	Building Personal Property - Outdoor Buildings
SPP 115 01 24	Policy Amendatory Endorsement - Roofing Materials

Location Summary

Loc #	Location Address	Inflation Guard Factor	Premium
1	8531 E Epworth Forest Rd N, Webster IN 46555	1.06800	$114

Location 1: 8531 E Epworth Forest Rd N, Webster IN 46555 **County:** Kosciusko
Protection: Partially Protected

Building Property Coverages	Coverage Limit	Deductible	Premium
Description: Weekend Retreats Year Built: 1941 Construction Type: Frame			

OTHER COVERAGES, LIMITS, EXCLUSIONS, AND CONDITIONS APPLY. REFER TO YOUR POLICY FOR COMPLETE COVERAGE INFORMATION.

Protective Devices or Services Credit -- (3%) 80% Replacement Cost Credit -- (5%) Agreed Value			
A. Building	$0	$1,000	$0
B. Business Personal Property	$7,099	$1,000	$19
Ordinance or Law Increased Cost of Construction	$100,000	$1,000	$0

Liability Coverages	**Liability Limit**	**Premium**
Commercial General Liability Charge Building Description: Weekend Retreats Square Footage: 1000		$95
Additional Insureds – Controlling Interest Designated Person/Organization: THE UPPER ROOM		$0

Total Location Premium	**$114**

Location Forms and Endorsements:

BP 0702 01 04	Additional Insured – Controlling Interest	SPP 072 01 19	Agreed Value Endorsement

OTHER COVERAGES, LIMITS, EXCLUSIONS, AND CONDITIONS APPLY. REFER TO YOUR POLICY FOR COMPLETE COVERAGE INFORMATION.

NOTICE OF PRIVACY POLICY

At Mennonite Mutual Insurance Company, protecting your privacy is very important to us. We value your trust, and we want you to understand what information we collect about you and how we use it. This Notice summarizes our privacy policy and practices regarding this collection, disclosure and confidentiality of your nonpublic information. This privacy policy applies to our relationship if you are an individual who obtains products or services from us for personal, family, or household purposes.

INFORMATION WE COLLECT

We may collect nonpublic personal information about you from the following sources:
*Information which we receive from you on applications or other forms;
*Information about your transactions with us, our affiliates or others;
*Information which we receive from third parties including consumer reporting agencies and other insurance companies.
We use your nonpublic personal information to evaluate your application for insurance coverage, to determine your rates, to process and service your policy, to settle claims and to comply with any requests you make regarding your insurance policy.

WHAT KIND OF INFORMATION WE DISCLOSE AND TO WHOM WE DISCLOSE IT

We do not disclose any nonpublic personal information about you to nonaffiliated third parties except as permitted by law. Disclosures which are permitted by law include, but are not limited to, disclosures which are necessary to service your policy, to investigate and pay claims and to process transactions that you request. As a result, we may disclose nonpublic personal information under certain circumstances to nonaffiliated third parties such as:
*Your agent or broker;
*Parties who perform a business, professional, or insurance function for our company, including our reinsurance companies;
*Independent claims adjusters, appraisers, investigators and attorneys who need the information to investigate, defend, or settle a claim involving you;
*Businesses that help us with data processing or marketing;
*Businesses that conduct research including actuarial or underwriting studies;
*Other insurance companies, agents, or consumer reporting agencies as reasonably necessary in connection with any application, policy, or claim involving you;
*Insurance regulatory agencies in connection with the regulation of our business;
*Law enforcement or other governmental authorities to protect our legal interest, or in cases of suspected fraud or illegal activities;
*Authorized persons as ordered by a subpoena, warrant, or other court order or as required by law; and
*Lienholders, mortgagees, lessors, or other persons shown on our records having a legal or beneficial interest in your policy.
We do not sell any nonpublic personal information about you to other persons for marketing or solicitation purposes.

INFORMATION SECURITY

We restrict access to your nonpublic information to those employees and outside service providers who need to know that information to provide products and services to you. We maintain physical, electronic and procedural safeguards that comply with applicable federal and state regulation to guard your nonpublic personal information.

FORMER CUSTOMERS

If you end your relationship with us, we will continue to adhere to the policies and practices described in this privacy policy.

MUTUAL POLICY CONDITIONS

Membership - As a policyholder of Mennonite Mutual Insurance Company, you are also a member of the Company and are entitled to attend all regularly scheduled or special meetings of the membership.

Annual Meeting - The Annual Meeting of the members of Mennonite Mutual Insurance Company is held the fourth Tuesday of February each year at 10:00 AM in the Company's home office located at 1000 South Main Street, Orrville, Ohio. While this policy is in force you are entitled to one vote only – regardless of the number of policies issued to you or the number of Named Insureds on any one policy – either in person or by proxy at meetings of members of the company.

Premiums - This policy is non-assessable. This means that you have no responsibility for our debts or obligations. Your responsibility is limited to the premium charged for your insurance coverage.

This policy is signed by the President and Secretary of Mennonite Mutual Insurance Company and is valid if countersigned on the Declarations page by an authorized representative.

Tom Troyer
President

George Bixler
Secretary

OTHER COVERAGES, LIMITS, EXCLUSIONS, AND CONDITIONS APPLY. REFER TO YOUR POLICY FOR COMPLETE COVERAGE INFORMATION.

THIS ENDORSEMENT CHANGES THE POLICY
-- PLEASE READ IT CAREFULLY --

CYBER LIABILITY INSURANCE ENDORSEMENT

THIS ENDORSEMENT PROVIDES CYBER LIABILITY INSURANCE ON A CLAIMS-MADE AND REPORTED BASIS. READ THE ENTIRE ENDORSEMENT CAREFULLY TO DETERMINE RIGHTS, DUTIES, COVERAGE AND COVERAGE RESTRICTIONS. THE TERMS, CONDITIONS, EXCLUSIONS, LIMITS OF INSURANCE, AND DEFINITIONS SET FORTH IN THIS ENDORSEMENT APPLY ONLY TO THE COVERAGE PROVIDED BY THIS ENDORSEMENT. THE COMMON POLICY CONDITIONS OF THE POLICY TO WHICH THIS ENDORSEMENT IS ATTACHED ALSO APPLY.

THE LIMITS OF INSURANCE FOR THE COVERAGE PROVIDED UNDER THIS ENDORSEMENT ARE SPECIFIED IN THE SCHEDULE SHOWN BELOW. SUCH LIMITS OF INSURANCE ARE IN ADDITION TO, AND WILL NOT ERODE, THE LIMITS OF INSURANCE PROVIDED ELSEWHERE UNDER THE POLICY. DEFENSE COSTS ARE PAYABLE WITHIN, AND NOT IN ADDITION TO, THE LIMITS OF INSURANCE FOR THE COVERAGE PROVIDED BY THIS ENDORSEMENT. PAYMENT OF DEFENSE COSTS WILL REDUCE THE LIMIT OF INSURANCE.

SCHEDULE

EFFECTIVE DATE FOR THIS ENDORSEMENT:	
RETROACTIVE DATE:	
COVERAGE	**LIMIT OF INSURANCE**
Multimedia Liability - Each “Claim”:	$
Security And Privacy Liability - Each “Claim”:	$
Privacy Regulatory Defense And Penalties - Each “Claim”:	$
PCI DSS Assessment Coverage - Each “Claim”:	$
Privacy Breach Response Costs, Notification Expenses And Customer Support And Credit Monitoring Expenses - Each “Claim”:	$
Network Asset Protection - Each “Claim”:	$
Cyber Extortion - Each “Claim”:	$
Cyber Terrorism - Each “Claim”:	$
BrandGuard - Each “Claim”:	$
Annual Aggregate Limit:	$
PREMIUM:	$
Information required to complete this Schedule, if not shown above, will be shown in the Declarations.	

All words and phrases that appear in quotation marks have special meaning; refer to **Section V – DEFINITIONS** of this Endorsement. To the extent any words or phrases used in this Endorsement are defined elsewhere in the Policy, such definitions provided elsewhere do not apply to give meaning to the words or phrases used in this Endorsement.

SECTION I – CYBER LIABILITY COVERAGE AGREEMENTS

In consideration of the premium paid and subject to all terms, conditions, definitions, exclusions and other provisions of this Endorsement, "we" agree as follows:

A. MULTIMEDIA LIABILITY COVERAGE

Subject to the limits shown in the Schedule, "we" will pay "damages" which an "insured" becomes legally obligated to pay, and "defense costs," resulting from a "claim" for an actual or alleged "multimedia peril", provided that:

(1) Such "claim" is first made against the "insured" during the "endorsement period";

(2) The "insured" reports such "claim" in writing to "us" no later than sixty (60) days after the "claim" is first made against the "insured"; and

(3) The "multimedia peril" takes place or first commences on or after the "retroactive date".

B. SECURITY AND PRIVACY LIABILITY COVERAGE

Subject to the limits shown in the Schedule, "we" will pay "damages" which an "insured" becomes legally obligated to pay, and "defense costs" resulting from a "claim" for an actual or alleged "security and privacy wrongful act", provided that:

(1) Such "claim" is first made against the "insured" during the "endorsement period";

(2) The "insured" reports such "claim" in writing to "us" no later than sixty (60) days after the "claim" is first made against the "insured"; and

(3) The "security and privacy wrongful act" takes place or first commences on or after the "retroactive date".

C. PRIVACY REGULATORY DEFENSE AND PENALTIES COVERAGE

Subject to the limits shown in the Schedule, "we" will pay "regulatory fines and penalties" and/or any "regulatory compensatory award" which an "insured" becomes legally obligated to pay, and "defense costs" resulting from a "claim" for an actual or alleged "security breach" or "privacy breach", provided that:

(1) Such "claim" is first made against the "insured" during the "endorsement period";

(2) The "insured" reports such "claim" in writing to "us" no later than sixty (60) days after the "claim" is first made against the "insured"; and

(3) The "security breach" or "privacy breach" takes place or first commences on or after the "retroactive date".

D. PCI DSS ASSESSMENT COVERAGE

Subject to the limits shown in the Schedule, "we" will pay "PCI DSS assessments" which an "insured" becomes legally obligated to pay, and "defense costs" resulting from a "claim" for an actual or alleged "security breach" or "privacy breach", provided that:

(1) Such "claim" is first made against the "insured" during the "endorsement period";

(2) The "insured" reports the "claim" in writing to "us" no later than sixty (60) days after the "claim" is first made against the "insured"; and

(3) The "security breach" or "privacy breach" takes places or first commences on or after the "retroactive date".

E. PRIVACY BREACH RESPONSE COSTS, NOTIFICATION EXPENSES, AND CUSTOMER SUPPORT AND CREDIT MONITORING EXPENSES COVERAGE

Subject to the limits shown in the Schedule, "we" will pay reasonable "privacy breach response costs", "notification expenses", and/or "customer support and credit monitoring expenses" which "you" incur during the "endorsement period" as a direct result of an "adverse media report", "security breach", or "privacy breach", provided that:

(1) The "adverse media report", "security breach", or "privacy breach" takes place or first commences on or after the "retroactive date"; and

(2) "You" report the "adverse media report", "security breach", or "privacy breach" in writing to "us" during the "endorsement period", but no later than sixty (60) days from the date an "insured" first discovers the "adverse media report", "security breach", or "privacy breach".

F. NETWORK ASSET PROTECTION COVERAGE

(1) Loss of Digital Assets

Subject to the limits shown in the Schedule, "we" will reimburse "you" for "digital assets loss" and/or "special expenses" which "you" incur during the "endorsement period" as a direct result of damage, alteration, corruption, distortion, theft, misuse, or destruction of "digital assets", provided that:

(a) Such damage, alteration, corruption, distortion, theft, misuse, or destruction of "digital assets" is directly caused by a "covered cause of loss";

(b) The "covered cause of loss" takes place or first commences on or after the "retroactive date";

(c) "You" report the "covered cause of loss" in writing to "us" during the "endorsement period", but no later than sixty (60) days from the date an "insured" first discovers the "covered cause of loss"; and

(d) "You" provide clear evidence that the "digital assets loss" and/or "special expenses" directly resulted from the "covered cause of loss".

"We" will reimburse "digital assets loss" and/or "special expenses" for a period of up to twelve (12) months following the discovery of the damage, alteration, corruption, distortion, theft, misuse, or destruction of "digital assets".

(2) Non-Physical Business Interruption and Extra Expense

Subject to the limits shown in the Schedule, "we" will reimburse "you" for "income loss", "interruption expenses" and/or "special expenses" which "you" incur during the "period of restoration", but after the "waiting period", as a direct result of a total or partial interruption, degradation in service or failure of an "insured computer system", provided that:

(a) Such total or partial interruption, degradation in service or failure of the "insured computer system" is directly caused by a "covered cause of loss";

(b) The "covered cause of loss" takes place or first commences on or after the "retroactive date";

(c) "You" report the "covered cause of loss" in writing to "us" during the "endorsement period", but no later than sixty (60) days from the date an "insured" first discovers the "covered cause of loss"; and

(d) "You" provide clear evidence that the "income loss", "interruption expenses" and/or "special expenses" directly resulted from the "covered cause of loss".

G. CYBER EXTORTION COVERAGE

Subject to the limits shown in the Schedule, "we" will reimburse "you" for "cyber extortion expenses" and/or "cyber extortion monies" that "you" pay as a direct result of a "cyber extortion threat", including a demand for "cyber extortion monies", provided that:

(1) Such "cyber extortion threat" is first made against an "insured" on or after the "retroactive date";

(2) "You" provide clear evidence that the "cyber extortion expenses" and/or "cyber extortion monies" directly resulted from the "cyber extortion threat"; and

(3) "You" report the "cyber extortion threat" in writing to "us" during the "endorsement period", but no later than sixty (60) days from the date the "cyber extortion threat" is made against an "insured".

"You" shall not pay "cyber extortion expenses" and/or "cyber extortion monies" without "our" prior consultation and written authorization. "You" must make every reasonable effort to notify local law enforcement authorities and the Federal Bureau of Investigation, or similar equivalent foreign agency, before surrendering any "cyber extortion monies" in response to a "cyber extortion threat".

H. CYBER TERRORISM COVERAGE

Subject to the limits shown in the Schedule, "we" will reimburse "you" for "income loss", "interruption expenses", and/or "special expenses" which "you" incur during the "period of restoration", but after the "waiting period", as a direct result of a total or partial interruption, degradation in service, or failure of an "insured computer system", provided that:

(1) Such total or partial interruption, degradation in service, or failure of the "insured computer system" is directly caused by an "act of cyber terrorism";

(2) The "act of cyber terrorism" takes place or first commences on or after the "retroactive date";

(3) "You" report the "act of cyber terrorism" in writing to "us" during the "endorsement period", but no later than sixty (60) days from the date an "insured" first discovers the "act of cyber terrorism"; and

(4) "You" provide clear evidence that the "income loss", "interruption expenses" and/or "special expenses" directly resulted from the "act of cyber terrorism".

I. BRANDGUARD COVERAGE

Subject to the limits shown in the Schedule, "we" will reimburse "you" for "your" provable and ascertainable "brand loss", which "you" sustain during the "period of indemnity", but after the "waiting period", as a direct result

of an “adverse media report” or “notification”, provided that:

(1) The “adverse media report” or “notification” results from a “privacy breach” or “security breach” that takes place or first commences on or after the “retroactive date”;

(2) “You” report the “brand loss” in writing to “us” during the “endorsement period”, but no later than sixty (60) days from the date “you” first discover the actual or potential “brand loss”; and

(3) “You” provide clear evidence that the “brand loss” directly resulted from the “adverse media report” or “notification”.

SECTION II – DEFENSE, INVESTIGATION, AND SETTLEMENT

“We” will have the right and duty to defend any “claim” under Coverage Agreement A, Coverage Agreement B, Coverage Agreement C, or Coverage Agreement D, even if the allegations of the “claim” are groundless, false, or fraudulent. “We” have the right to appoint counsel to defend any such “claim”.

“We” may investigate or settle any “claim” at its sole discretion. The applicable limits of insurance will be reduced and may be completely exhausted by payment of “defense costs”. “We” will not be obligated to pay or defend any “claim” after the applicable limit of “our” liability hereunder has been exhausted.

No “insured” will incur any “defense costs” or other expenses, or settle any “claim”, assume any contractual obligation, admit liability, voluntarily make any payment, or otherwise consent to any settlement or judgment with respect to any “claim” without “our” prior written consent, which will not be unreasonably withheld. “We” will not be liable for any “defense costs” or other expenses, settlement, or judgment to which “we” have not consented.

SECTION III - EXCLUSIONS

The insurance provided under this Endorsement does not apply to:

A. Any “claim” based upon, arising out of, resulting from, in consequence of, or in any way involving any “multimedia peril”, “security and privacy wrongful act”, “security breach”, “privacy breach”, “covered cause of loss”, “cyber extortion threat”, “act of cyber terrorism”, or “adverse media report”:

(1) Which was the subject of written notice given to “us” or to any other insurer prior to “your” initial effective date of Cyber Liability coverage;

(2) Which was the subject of any prior and/or pending written demand made against any “insured”, or a civil, administrative, or arbitration proceeding commenced against any “insured”, prior to “your” initial effective date of Cyber Liability coverage, or that involved the same or substantially the same fact, circumstance, or situation underlying or alleged in such prior demand or proceeding; or

(3) Which any “insured” had knowledge of prior to “your” initial effective date of Cyber Liability coverage.

B. Any “claim” based upon, arising out of, resulting from, in consequence of, or in any way involving any actual, alleged, or threatened discharge, dispersal, release, or escape of “pollutants”, or any direction, request, or voluntary decision to test for, abate, monitor, clean up, remove, contain, treat, detoxify, or neutralize “pollutants”, nuclear material, or nuclear waste.

C. Any “claim” for liability assumed by an “insured” under any oral or written contract or agreement, except where such liability would apply apart from such contract or

agreement and is otherwise covered by this Endorsement. With respect to any "multimedia peril", "security breach" or "privacy breach", this exclusion does not apply to any "claim" alleging liability "assumed under contract".

D. Any "claim" for breach of any express, implied, actual, or constructive contract, warranty, guarantee, or promise, except where such liability would apply apart from such contract, warranty, guarantee, or promise and is otherwise covered by this Endorsement. This exclusion does not apply to any "claim" alleging breach of "your" privacy policy or liability "assumed by contract".

E. Any "claim" which is covered under any Professional Liability policy or the General Liability coverage section of the Policy to which this endorsement attaches.

F. Any "claim" for violations of the False Claims Act or any similar federal or state law, rule, or regulation concerning billing errors or fraudulent billing practices or abuse.

G. Any "claim" for infringement of any patent or the misappropriation, theft, copying, display, or publication of any trade secret.

H. Any "claim" for unfair competition, price fixing, deceptive trade practices, restraint of trade, or violation of any anti-trust laws.

I. Any "claim" based upon, arising out of, resulting from, in consequence of, or in any way involving:

(1) Any employment or employment-related matters, including, but not limited to, employer-employee relations, policies, acts, or omissions;

(2) Any actual or alleged refusal to employ any person or any other actual or alleged misconduct with respect to employees; or

(3) Any actual or alleged obligations of the "insured" under any workers' compensation, unemployment insurance, social security, disability benefits, or other similar law.

This exclusion does not apply to an otherwise covered "claim" under Coverage Agreement B, which is brought by "your" past, present, or future employee alleging a "security and privacy wrongful act".

J. Any "claim" for "bodily injury" or "property damage".

K. Any "claim" for harassment or discrimination because of, or relating to, race, creed, color, age, sex, sexual orientation or preference, national origin, religion, handicap, disability, political affiliation, marital status, or any other basis prohibited by federal, state, or local law.

L. Any "claim" based upon, arising out of, resulting from, in consequence of, or in any way involving:

(1) Satellite failures;

(2) Electrical or mechanical failures and/or interruption including, but not limited to, electrical disturbance, spike, brownout, or blackout; or

(3) Outages to gas, water, telephone, cable, telecommunications, or other infrastructure, unless such infrastructure is under "your" direct operational control and such "claim" is otherwise covered under Coverage Agreement F or Coverage Agreement H.

M. Any "claim" for violation of any of United States of America's economic or trade sanctions, including, but not limited to, sanctions administered and enforced by the U.S. Treasury Department's Office of Foreign Assets Control ("OFAC").

N. Any "criminal proceeding".

O. Any "claim" based upon, arising out of, resulting from, in consequence of, or in any way involving:

(1) Any willful, deliberately dishonest, malicious, or fraudulent act or omission;

(2) Any intentional violation of the law or of "your" privacy policy; or

(3) The gaining in fact of any profit, remuneration, or financial advantage to which an "insured" was not legally entitled;

if committed by any "insured", whether acting alone or in collusion with other persons. Notwithstanding the foregoing, the insurance afforded by this Endorsement will apply to "defense costs" incurred in defending any such "claim" until such time as there is a judgment or other final adjudication adverse to the "insured" establishing such willful, dishonest, fraudulent, or malicious conduct. "We" will have the right to recover "defense costs" incurred in defending such "claim" from those parties found to have committed such willful, dishonest, fraudulent, or malicious conduct.

This exclusion does not apply to:

(1) Any "insured" that did not commit, participate in, or have knowledge of any willful, dishonest, fraudulent, or malicious conduct described in this exclusion; or

(2) A "claim" resulting from sabotage by "your" employee.

P. Any "claim" based upon, arising out of, resulting from, in consequence of, or in any way involving:

(1) Any actual or alleged "multimedia peril", "security and privacy wrongful act", "security breach", "privacy breach", "covered cause of loss", "cyber extortion threat", "act of cyber terrorism", or "adverse media report" that took place or first commenced prior to the "retroactive date"; or

(2) Any actual or alleged "multimedia peril", "security and privacy wrongful act", "security breach", "privacy breach", "covered cause of loss", "cyber extortion threat", "act of cyber terrorism", or "adverse media report" that took place on or after the "retroactive date", which, together with an actual or alleged "multimedia peril", "security and privacy wrongful act", "security breach", "privacy breach", "covered cause of loss", "cyber extortion threat", "act of cyber terrorism", or "adverse media report" that took place prior to the "retroactive date", would constitute related "multimedia perils", "security and privacy wrongful acts", "security breaches", "privacy breaches", "covered causes of loss", "cyber extortion threats", "acts of cyber terrorism", or "adverse media reports".

For purposes of this exclusion, "multimedia perils", "security and privacy wrongful acts", "security breaches", "privacy breaches", "covered causes of loss", "cyber extortion threats", "acts of cyber terrorism" or "adverse media reports" will be deemed related if "we" determine that they are logically or causally connected by any common fact, circumstance, situation, event, transaction, or series of facts, circumstances, situations, events, or transactions.

Q. Any "claim" based upon, arising out of, resulting from, in consequence of, or in any way involving any business, joint venture, or enterprise not named on the Declarations, Supplemental Declarations, or Schedules attached to the policy.

R. Any "claim" based upon, arising out of, resulting from, in consequence of, or in any

way involving any conduct, act, error, or omission of any individual serving in any capacity other than as "your" officer, director, partner, stockholder, trustee, employee, official, member of the board of governors, or member of the clergy.

S. Any "claim" based upon, arising out of, resulting from, in consequence of, or in any way involving an "insured's" insolvency or bankruptcy, the insolvency or bankruptcy of any other individual or entity, or the failure, inability, or unwillingness to make payments because of the insolvency, liquidation, or bankruptcy of any individual or entity.

T. Any "claim" based upon, arising out of, resulting from, in consequence of, or in any way involving the wear and tear, drop in performance, progressive deterioration, or aging of "your" electronic equipment or "computer hardware".

U. Any "claim" based upon, arising out of, resulting from, in consequence of, or in any way involving the failure of overhead transmission and distribution lines.

V. Any "claim" based upon, arising out of, resulting from, in consequence of, or in any way involving the gradual deterioration of subterranean insulation.

W. Any "claim" based upon, arising out of, resulting from, in consequence of, or in any way involving fire, smoke, explosion, lightning, wind, water, flood, earthquake, volcanic eruption, tidal wave, landslide, hail, force majeure, or any other physical event, however caused.

X. Any "claim" based upon, arising out of, resulting from, in consequence of, or in any way involving the gradual deterioration or wear and tear of an "insured computer system".

Y. Any "claim" based upon, arising out of, resulting from, in consequence of, or in any way involving the actual or alleged inaccurate, inadequate, or incomplete description of the price of goods, products, or services.

Z. Any "claim" based upon, arising out of, resulting from, in consequence of, or in any way involving cost guarantees, cost representations, contract price, or cost estimates being exceeded.

AA. Any "claim" brought by or on behalf of:

(1) Any "insured" against another "insured";

(2) Any entity which is owned, in whole or in part, by an "insured", or any entity directly or indirectly controlled, operated, or managed by an "insured";

(3) Any entity which is a parent, affiliate, or subsidiary of any entity or joint venture in which an "insured" is a partner; or

(4) Any individual or entity who is a partner in any entity or joint venture in which an "insured" is also a partner.

This exclusion does not apply to an otherwise covered "claim" under Coverage Agreement B, which is brought by "your" past, present, or future employee alleging a "security and privacy wrongful act".

BB. Any "claim" based upon, arising out of, resulting from, in consequence of, or in any way involving unauthorized trading. For purposes of this exclusion, "unauthorized trading" means trading, which at the time of the trade is:

(1) In excess of permitted financial limits; or

(2) Outside of permitted product lines.

CC. Any "claim" based upon, arising out of, resulting from, in consequence of, or in any way involving:

(1) The actual or alleged purchase or sale of securities, or an offer, or solicitation of an offer, to purchase or sell securities;

(2) The actual or alleged loss of value of any securities; or

(3) Any actual or alleged violation of any securities law such as the provisions of the Securities Act of 1933, the Securities Exchange Act of 1934, the Sarbanes-Oxley Act of 2002, or any regulation promulgated under the foregoing statutes, or any federal, state, local, or foreign laws similar to the foregoing statutes, including "Blue Sky" laws, whether such law is statutory, regulatory, or common law.

DD. Any "claim" for violation of the Organized Crime Control Act of 1970 (commonly known as 'Racketeer Influenced And Corrupt Organizations Act' or 'RICO'), as amended, or any regulation promulgated under the foregoing statutes, or any similar federal, state, local, or foreign laws, whether such law is statutory, regulatory, or common law.

EE. Any "claim" which is brought by the Federal Trade Commission, the Federal Communications Commission, or any other federal, state or local governmental entity, in such entity's regulatory or official capacity. This exclusion does not apply to an otherwise covered "claim" under Coverage Agreement C.

FF. Any "claim" alleging:

(1) The violation of any pension, healthcare, welfare, profit sharing plans, mutual plans, investment plans, funds, or trusts; or

(2) The violation of any provision of the Employee Retirement Income Security Act of 1974 and its amendments and/or the Pension Protection Act of 2006 and its amendments, or any regulation, ruling, or order issued pursuant thereto.

GG. Any "claim" based upon, arising out of, resulting from, in consequence of, or in any way involving:

(1) "War";

(2) A "cyber operation" that is carried out in the course of "war"; or

(3) Any action taken in controlling, preventing, suppressing, or in any way relating to GG(1) or GG(2) above.

This exclusion does not apply to an "act of cyber terrorism".

HH. Any "claim" based upon, arising out of, resulting from, in consequence of, or in any way involving a "cyber operation" that has a major detrimental impact on:

(1) The functioning of a sovereign state due to the direct or indirect effect of the "cyber operation" on the availability, integrity, or delivery of an "essential service" in that sovereign state; and/or

(2) The security or defense of a sovereign state.

This exclusion does not apply to the direct or indirect effect of a "cyber operation" on a "bystanding cyber asset".

Attribution by the government of an "impacted state" in which the "computer system" affected by the "cyber operation" is physically located is required. Pending attribution by the government of an "impacted state" that the "cyber operation" is attributable to another sovereign state, any loss shall be paid by "us".

If the government of an "impacted state" cannot attribute the "cyber operation" to

another sovereign state, “we” shall prove attribution by reference to such other evidence as is available.

II. Any “claim” based upon, arising out of, resulting from, in consequence of, or in any way involving “your” commercial decision to cease providing a particular product or service, but only if “you” are contractually obligated to continue providing such products or services.

JJ. Any “claim” based upon, arising out of, resulting from, in consequence of, or in any way involving:

(1) Gambling or pornography;

(2) Prizes, awards, or coupons; or

(3) The sale or provision of prohibited,

restricted, or regulated items such as alcoholic beverages, tobacco, or drugs.

KK. Any “claim” based upon, arising out of, resulting from, in consequence of, or in any way involving the use of programs that are not “operational programs” or “delivered programs”.

LL. Any “claim” based upon, arising out of, resulting from, in consequence of, or in any way involving any “insured’s” intentional use of illegal or unlicensed programs that are in violation of the provisions or laws referring to software protection.

MM. Any “claim” based upon, arising out of, resulting from, in consequence of, or in any way involving the confiscation, commandeering, requisition, destruction of, or damage to “computer hardware” by order of a government de jure or de facto or by any public authority for whatever reason.

NN. Any “claim” based upon, arising out of, resulting from, in consequence of, or in any way involving the existence, emission, or discharge of any electromagnetic field, electromagnetic radiation or electromagnetism that actually or allegedly affects the health, safety, or condition of any person or the environment or that affects the value, marketability, condition, or use of any property.

OO. Any “claim” based upon, arising from, or in any way involving a “widespread event”. The determination of whether an event constitutes a “widespread event” will rely upon available evidence such as information from governments, news media, qualified IT forensics firms, computer experts, and claims reported to “us”.

PP. With respect to Coverage Agreements E, F, G, H and I, any “claim” based upon, arising out of, resulting from, in consequence of, or in any way involving an “operating system event”.

QQ. With respect to Coverage Agreement F(1):

(1) Any amount incurred in restoring, updating, or replacing “digital assets” to a level beyond that which existed prior to the “covered cause of loss”;

(2) Physical damage to the “computer hardware” or “data” center, other than accidental physical damage or destruction of “electronic media” so that stored “digital assets” are no longer machine-readable;

(3) Contractual penalties or consequential damages;

(4) Any liability to third parties for whatever reason, including legal costs and expenses of any type;

(5) Fines or penalties imposed by law;

(6) The economic or market value of “digital assets”;

(7) Costs or expenses incurred to identify, patch, or remediate software program errors or “computer system” vulnerabilities;

(8) Costs to upgrade, redesign, reconfigure, or maintain an “insured

computer system" to a level of functionality beyond that which existed prior to the "covered cause of loss"; or

(9) Any losses paid under Coverage Agreement F(2).

RR. With respect to Coverage Agreement F(2):

(1) Any loss arising out of updating or replacing "digital assets" to a level beyond that which existed prior to the "covered cause of loss";

(2) Contractual penalties or consequential damages;

(3) Any liability to third parties for whatever reason, including legal costs and expenses of any type;

(4) Fines or penalties imposed by law;

(5) Costs or expenses incurred to identify, patch, or remediate software program errors or "computer system" vulnerabilities;

(6) Loss of goodwill and reputational harm;

(7) Costs to upgrade, redesign, reconfigure, or maintain an "insured computer system" to a level of functionality beyond that which existed prior to the "covered cause of loss"; or

(8) Any losses paid under Coverage Agreement F(1).

SS. With respect to Coverage Agreement I:

(1) Any amounts incurred by "you" in an effort to re-establish "your" "reputation, "including "public relations expenses";

(2) Any amounts incurred in any "claim" that is insured by any other insurance, except excess insurance;

(3) Any amounts incurred in connection with an "adverse media report" that also affects or refers in similar terms to a general security issue, an industry, or "your" specific competitors without any specific allegations regarding a "privacy breach" or "security breach" by an "insured", a "BPO service provider", an "outsourced IT service provider", or by others acting on "your" behalf and for whom "you" are legally responsible;

(4) Any civil or regulatory liability to third parties for whatever reason, including legal costs and expenses of any type;

(5) Contractual penalties or consequential "damages";

(6) "Privacy breach response costs", "notification expenses" or "customer support and credit monitoring expenses" paid under Coverage Agreement E; or

(7) Fines or penalties imposed by law or regulation.

SECTION IV - LIMITS OF LIABILITY

A. The limit of insurance shown in the Schedule as applicable to each "claim" is the most "we" will pay for each "claim" under each Coverage Agreement of this Endorsement, including "defense costs" where applicable, regardless of the number of "insureds" involved or affected, the number of individuals or entities making a "claim", or the number of "claims" made.

B. Subject to the provisions respecting each "claim", the limit of insurance shown in the Schedule as the Annual Aggregate Limit is the most "we" will pay for all "claims" made during the "endorsement period" under all Coverage Agreements of this Endorsement combined. The Annual Aggregate Limit includes "defense costs".

D. If the Annual Aggregate Limit is exhausted, then "our" obligations under this

Endorsement will be deemed completely fulfilled and extinguished.

E. All "claims" made under any one Coverage Agreement which arise out of the same, related, or continuing acts, facts, or circumstances, will be considered a single "claim" without regard to the number of "insureds", "claims", or persons or entities making a "claim", and only one each "claim" limit will apply. Such "claim" will be deemed to have been first made on the date the earlier of the related "claims" was first made and will be deemed to have been first reported to "us" on the date the earlier of the related "claims" was first reported to "us" in writing. Appeals and any post-trial proceedings or consolidated proceedings approved by "us" will be considered to be part of the original "claim".

F. In the event that a "claim" is made and applies to more than one Coverage Agreement of this Endorsement, only one each "claim" limit will apply. "We" have the sole discretion to allocate amounts paid, if any, against the appropriate limit of liability.

G. In the event two or more "claims" arising out of the same facts, circumstances, situations, events, or transactions are covered under more than one Coverage Agreement of this Endorsement, only one each "claim" limit will apply to such "claims". "We" have the discretion to allocate "claims" paid, if any, against the appropriate limit of insurance. All such "claims", whenever first made, shall be considered as reported to "us" during the "endorsement period" in which the first of such "claims" is reported to "us", and shall be subject to the limits of insurance applicable to that policy.

SECTION V - DEFINITIONS

When used in this Endorsement:

A. "Acquiring bank" means a bank or financial institution that accepts credit and/or debit card payments (including stored value cards and pre-paid cards) for products or services on behalf of a merchant, including processing and crediting those payments to a merchant's account.

B. "Act of cyber terrorism" means the premeditated use of disruptive activities, or the threat thereof, against computers, "computer systems", networks and/or public "internet" by any person or group(s) of persons, whether acting alone or on behalf of, or in connection with, any organization(s) or government(s) with the intention to intimidate or cause destruction or harm and/or further social, ideological, religious, political, or similar objectives, provided that such activities are not committed by, or at the express direction of, a sovereign state or a government simultaneously engaged in "war" or a "cyber operation" carried out as part of any "war". "Act of cyber terrorism" includes, but is not limited to, the use of information technology to organize and execute large-scale attacks against "computer systems", networks and/or public "internet", resulting in disabling and/or deleting critical infrastructure, "data", or information.

C. "Adverse media report" means any unpredictable report or communication of an actual or potential "security breach" or "privacy breach", which:

(1) Has been publicized through any media channel including, but not limited to, television, "print media", radio, or electronic networks, the "internet", and/or electronic mail; and

(2) Threatens material damage to "your" reputation or "your" brands.

D. "Application program" means any computer software program that performs a particular function or task within the "computer operating system" for the end-user, including, but not limited to, database programs, web browsers, enterprise software, word processors, graphics software and media players.

E. "Assumed under contract" means liability for "damages" resulting from a "multimedia peril", "security breach", or "privacy breach" where such liability has been assumed by "you" in the form of a written hold harmless or indemnity agreement, provided that such

agreement was executed prior to the date the "multimedia peril", "security breach", or "privacy breach" occurred.

F. "Attack vector" means the method or combination of methods that are used in a "hacking attack".

G. "BPO service provider" means any third party independent contractor that provides business process outsourcing services for "your" benefit under a written contract with "you", including, but not limited to, call center services, fulfillment services, and logistical support.

H. "Bodily injury" means physical injury, sickness, disease, pain, or death, and if arising out of the foregoing, mental anguish, mental injury, shock, humiliation, or emotional distress sustained by a person at any time.

I. "Brand loss" means "your" revenue as could have been reasonably projected immediately prior to "notification" or, in the event of an "adverse media report", immediately prior to the publication of an "adverse media report", but which has been lost after the "waiting period" but during the "period of indemnity" as a direct result of such "notification" or "adverse media report", less the variable costs (including the cost of raw materials and all other costs) that would have been incurred during the same period, but were saved as a result. "Brand loss" will be determined in accordance with Section VII(C) of this Endorsement.

J. "Bystanding cyber asset" means a "computer system" used by the "insured" or its third party service providers that is not physically located in an "impacted state" but is affected by a "cyber operation".

K. "Card association" means Visa International, Mastercard, Discover, JCB American Express and any similar credit or debit card association that is a participating organization of the Payment Card Industry Security Standards Council.

L. "Claim" means:

(1) With respect to Coverage Agreement A (Multimedia Liability) and Coverage Agreement B (Security and Privacy Liability):

(a) Any written demand for monetary or non-monetary relief made against an "insured";
(b) Any civil proceeding or arbitration proceeding initiated against an "insured", commenced by the service of a complaint or similar pleading or notice; or
(c) Any written request to toll or waive a statute of limitations relating to a potential "claim" against an "insured", including any appeal therefrom.

A "claim" under Coverage Agreement A or Coverage Agreement B will be deemed to be first made when an "insured" first receives notice of any of (1)(a) through (1)(c) above.

(2) With respect to Coverage Agreement C (Privacy Regulatory Defense and Penalties), a "government investigation" commenced against an "insured" by letter, notice, complaint, or order of investigation. A "claim" under Coverage Agreement C will be deemed to be first made when it is first received by an "insured".

(3) With respect to Coverage Agreement D (PCI DSS Assessment Coverage), any written demand made against an "insured" by an "acquiring bank" or "card association" for a "PCI DSS assessment" due to the "insured's" non-compliance with the "PCI Data Security Standard". A "claim" under Coverage Agreement D will be deemed to be first made when

such written demand is received by an "insured".

(4) With respect to Coverage Agreement E (Privacy Breach Response Costs, Notification Expenses, and Customer Support and Credit Monitoring Expenses), "your" written report to "us" of an "adverse media report", "security breach", or "privacy breach". A "claim" under Coverage Agreement E will be deemed to be first made when such written report is received by "us".

(5) With respect to Coverage Agreement F (Network Asset Protection), "your" written report to "us" of a "covered cause of loss". A "claim" under Coverage Agreement F will be deemed to be first made when such written report is received by "us".

(6) With respect to Coverage Agreement G (Cyber Extortion), "your" written report to "us" of a "cyber extortion threat". A "claim" under Coverage Agreement G will be deemed to be first made when such written report is received by "us".

(7) With respect to Coverage Agreement H (Cyber Terrorism), "your" written report to "us" of an "act of cyber terrorism". A "claim" under Coverage Agreement H will be deemed to be first made when such written report is received by "us".

(8) With respect to Coverage Agreement I (BrandGuard), "your" written report to "us" of "brand loss" directly caused by an "adverse media report" or "notification". A "claim" under Coverage Agreement I will be deemed to be first made when such written report is received by "us".

M. "Computer hardware" means the physical components of any "computer system", including CPUs, memory, storage devices, storage media, and input/output devices and other peripheral devices and components, including, but not limited to, cable, connectors, fiber optics, wire, power supply units, keyboards, display monitors, and audio speakers.

N. "Computer operating system" means "computer system" software that manages or administers "computer hardware", software resources, or provides common services to run an "application program". "Computer operating system" does not include an "application program".

O. "Computer program" means an organized set of instructions that, when executed, causes a computer to behave in a predetermined manner. "Computer program" includes, but is not limited to, communications, networking, operating system, and related "computer programs" used to create, maintain, process, retrieve, store, and/or transmit electronic "data".

P. "Computer system" means computer, "computer hardware", software, communications system, electronic device (including but not limited to, smart phone, laptop, tablet, and wearable device), server, cloud infrastructure or microcontroller including any similar system or any configuration of the aforementioned and including any associated input, output, data storage device, networking equipment or back up facility.

Q. "Computer virus" means a program that possesses the ability to create replicas of itself (commonly known as auto-reproduction program) within other programs or operating system areas or which is capable of spreading copies of itself wholly or partly to other "computer systems".

R. "Covered cause of loss" means, and is limited to, the following:

(1) Accidental Damage or Destruction

(a) Accidental physical

damage or destruction of "electronic media" so that stored "digital assets" are no longer machine-readable;

(b) Accidental damage or destruction of "computer hardware" so that stored "data" is no longer machine-readable;

(c) Failure in power supply or under/over voltage only if such power supply is under "your" direct operational control. Direct operational control includes back-up generators;

(d) "Programming error" of "delivered programs"; or

(e) Electrostatic build-up and static electricity.

(2) Administrative or Operational Mistakes

An accidental, unintentional, or negligent act, error, or omission by "your" "employee", a "BPO service provider", or "outsourced IT service provider" in:

(a) The entry or modification of "your" electronic "data",

which causes damage to such "data";

(b) The creation, handling, development, modification, or maintenance of "digital assets"; or

(c) The ongoing operation or maintenance of an "insured computer system" excluding the design, architecture, or configuration of an "insured computer system".

(3) Computer Crime and Computer Attacks An act, mistake, or negligent error or omission in the operation of an "insured computer system" or in the handling of "digital assets" by "your" "employee", a "BPO service provider", or "outsourced IT service provider", which fails to prevent or hinder any of the following attacks on an "insured computer system":

(a) A "denial of service attack";
(b) "Malicious code";
(c) "Unauthorized access"; or
(d) "Unauthorized use".

S. "Criminal proceeding" means any governmental action for enforcement of criminal laws, including those offenses for which conviction could result in imprisonment and/or criminal fine.

T. "Customer support and credit monitoring expenses" means those reasonable and necessary expenses which "you" incur, with "our" prior written consent, in the event of a "privacy breach", for the provision of support activity to affected individuals, including the provision of credit file monitoring services and identity theft education and assistance for up to a period of twelve (12) months from the date of enrollment in such credit file monitoring services.

U. "Cyber extortion expenses" means all reasonable and necessary costs and expenses which "you" incur, with "our" prior written consent, as a direct result of a "cyber extortion threat", other than "cyber extortion monies".

V. "Cyber extortion monies" means any funds or property which "you" pay, with "our" prior written consent, to a person(s) or entity(ies) reasonably believed to be responsible for a "cyber extortion threat" insured under Coverage Agreement G, for the purpose of terminating such "cyber extortion threat".

W. "Cyber extortion threat" means a credible threat or series of related credible threats, including, but not limited to, a demand for "cyber extortion monies", directed at "you" to:

(1) Release, divulge, disseminate, destroy, or use the confidential information of a third party taken

from "you" as a result of "unauthorized access" to, or "unauthorized use" of, an "insured computer system";

(2) Introduce "malicious code" into an "insured computer system";

(3) Corrupt, damage, or destroy an "insured computer system";

(4) Restrict or hinder access to an "insured computer system", including, but not limited to, the threat of a "denial of service attack"; or

(5) Electronically communicate with "your" customers and falsely claim to be "you" or to be acting under "your" direction in order to falsely obtain personal confidential information of "your" customers (also known as pharming, phishing, or other types of false communications).

X. "Cyber operation" means the use of a "computer system" by or on behalf of a sovereign state to disrupt, deny, degrade, manipulate, or destroy information in a "computer system" of or in another sovereign state.

Y. "Damages" means the amount of money which an "insured" is legally obligated to pay as a result of a covered "claim" under Coverage Agreement A or Coverage Agreement B, including judgments and any prejudgment or post-judgment interest awarded against the "insured" on that part of any judgment paid or to be paid by "us", legal fees and costs awarded against an "insured" pursuant to such judgments, and settlements negotiated with "our" consent.

"Damages" does not include:

(1) Taxes;

(2) Any amount for which an "insured" is absolved from legal responsibility to make payment to a third party;

(3) Amounts owed under contract;

(4) "Your" future profits or royalties or any return, withdrawal, restitution, or reduction of "your" professional fees, profits, or other charges;

(5) Punitive, liquidated, or exemplary damages or the multiplied portion of multiplied damages;

(6) Fines, sanctions, or penalties;

(7) Any matters that are deemed uninsurable under applicable law;

(8) The costs to comply with orders granting injunctive or non-monetary relief, including specific performance or any agreement to provide such relief;

(9) Disgorgement of any remuneration or financial advantage to which "you" were not legally entitled; or

(10) Settlements negotiated without "our" consent.

Z. "Data" means any and all machine-readable information, including, but not limited to, ready-for-use programs, applications, account information, personal information, health and medical information, or electronic information subject to back-up procedures, irrespective of the way it is used and rendered.

AA. "Defense costs" means reasonable and necessary legal fees, costs and expenses incurred with "our" consent in the investigation, defense and appeal of any covered "claim" under Coverage Agreement A, Coverage Agreement B, Coverage Agreement C, or Coverage Agreement D. "Defense costs" does not include any wages, salaries, fees, overhead, or other charges incurred by, or paid to, any "insured" for any time spent in cooperating in the defense and investigation of any "claim" or potential "claim" under this Endorsement.

BB. "Delivered programs" means programs,

applications, and software where the development stage has been finalized, having passed all test-runs, and been proven successful in a live environment.

CC. "Denial of service attack" means an event caused by unauthorized or unexpected interference or a malicious attack intended by the perpetrator to overwhelm the capacity of a "computer system" by sending an excessive volume of electronic "data" to such "computer system" in order to prevent authorized access to such "computer system".

DD. "Digital assets" means "data" and "computer programs" that exist in an "insured computer system". "Digital assets" does not include "computer hardware".

EE. "Digital assets loss" means reasonable and necessary expenses and costs which "you" incur to replace, recreate, or restore "digital assets" to the same state and with the same contents immediately before it was damaged, destroyed, altered, misused, or stolen, including expenses for materials and machine time. "Digital assets loss" also includes amounts representing employee work time to replace, recreate, or restore "digital assets", which shall be determined on a predefined billable hours or per hour basis as based upon "your" schedule of employee billable hours. "Digital assets loss" will be determined in accordance with Section VII(A) of this Endorsement.

FF. "Electronic media" means floppy disks, CD ROM's, hard drives, magnetic tapes, magnetic discs, or any other media on which electronic "data" is recorded or stored.

GG. "Endorsement period" means the period of coverage commencing on the effective date specified on this Endorsement and ending on the earlier of the termination, expiration, or cancellation date of the policy to which this Endorsement attaches. "Endorsement period" does not include any extended reporting period.

HH. "Essential service" means any service that is essential for the proper operation and maintenance of vital functions of a sovereign state, including, but not limited to, financial services (including services related to financial institutions and associated financial market infrastructure), health services, utility services, emergency services, and/or services that are essential for the proper operation of the food, energy and/or transportation sector.

II. "Firmware" means the fixed programs that internally control basic low-level operations in a device.

JJ. "Government investigation" means a formal investigation instituted against an "insured" by any federal, state, or local government agency or authority, the subject matter of which is a "security breach" or "privacy breach".

KK. "Hacking attack" means a "security breach" or an "act of cyber terrorism".

LL. "Impacted state" means any sovereign state where a "cyber operation" has had a major detrimental impact on the functioning of that sovereign state due to the direct or indirect effect of the **"**cyber operation**"** on the availability, integrity, or delivery of an "essential service" in that sovereign state**;** and/or the security or defense of that sovereign state.

MM. "Income loss" means financial loss "you" sustain, as determined in accordance with the provisions of Coverage Agreement F(2) or Coverage Agreement H.

NN. "Insured" means the "named insured" and current executive officers, partners, directors, stockholders, trustees, employees, officials, members of the board of governors, or members of the clergy of the "named insured", but only while such individuals are acting within the scope of their duties on behalf of the "named insured".

OO. "Insured computer system" means:

(1) A "computer system" operated by

and either owned by, or leased to, "you"; or

(2) With respect to Coverage Agreement B only, a "computer system" operated by a "BPO service provider" or "outsourced IT service provider" and used for the sole purpose of providing hosted computer application services to "you" or for processing, maintaining, hosting, or storing "your" electronic "data", pursuant to a written contract with "you" for such services.

PP. "Internet" means the worldwide public network of computers which enables the transmission of electronic "data" between different users, including a private communications network existing within a shared or public network platform.

QQ. "Interruption expenses" means those expenses, excluding "special expenses", which "you" incur in accordance with the provisions of Coverage Agreement F(2) or Coverage Agreement H, to:

(1) Avoid or minimize the suspension of "your" business as a result of a total or partial interruption, degradation in service, or failure of an "insured computer system" caused directly by a "covered cause of loss" or an "act of cyber terrorism", which "you" would not have incurred had no "covered cause of loss" or "act of cyber terrorism" occurred, including, but not limited to, the use of rented/leased external equipment, substitution of other work or production procedures, use of third party services, or additional staff expenditures or labor costs; and

(2) Minimize or avoid a "covered cause of loss" or "act of cyber terrorism" and continue "your" business.

The amount of "interruption expenses" recoverable under paragraph (1) above shall in no case exceed the amount by which the covered "income loss" is reduced by such incurred expenses.

RR. "Malicious code" means software intentionally designed to insert itself and damage a "computer system" without the owner's informed consent by a variety of forms including, but not limited to, virus, worm, Trojan horses, spyware, dishonest adware, and crimeware.

SS. "Multimedia peril" means the release or display of any "electronic media" on "your" "internet" site or "print media" for which "you" are solely responsible, which directly results in any of the following:

(1) Any form of defamation or other tort related to the disparagement or harm to the reputation or character of any person or organization, including libel, slander, product disparagement, or trade libel;

(2) Invasion, infringement, or interference with an individual's right of privacy including false light, intrusion upon seclusion, commercial misappropriation of name, person, or likeness, and public disclosure of private facts;

(3) Plagiarism, piracy, or misappropriation of ideas under an implied contract;

(4) Infringement of copyright, trademark, trade name, trade dress, title, slogan, service mark, or service name; or

(5) Domain name infringement or improper deep-linking or framing.

TT. "Named insured" means the person, persons, entity, or organization listed as such on the Declarations, Supplemental Declarations, or Schedules attached to the policy.

UU. "Notification" means "notification" to individuals in the event of a "security breach" or a "privacy breach".

VV. "Notification expenses" means those reasonable and necessary expenses which "you" incur, with "our" prior written consent, to notify affected individuals in the event of a "security breach" or "privacy breach", whether or not there is a specific legal requirement to do so. "Notification expenses" includes, but is not limited to:

(1) Legal expenses;

(2) Computer forensic and investigation fees;

(3) "Public relations expenses";

(4) Postage expenses; and

(5) Related advertising expenses.

WW. "Operational programs" means programs and software which are ready for operational use, having been fully developed, tested, and accepted by "you".

XX. "Operating system event" means a single act of exploitation of, or a series of related, repeated, or continuing acts of exploitation of, software vulnerabilities in a "computer operating system", including, but not limited to, ransomware, wiper malware, computer worms, and "computer viruses", the impact of which is of sufficient intensity, scale, or effect to cause a major detrimental impact on the functioning of a sovereign state due to disruption of the availability, delivery, or integrity of any "essential service" in that sovereign state. For purposes of this definition, a major detrimental impact on the functioning of a sovereign state shall be deemed to occur when such impact has been made public through the media, official statement, or otherwise.

YY. "Outsourced IT service provider" means a third party independent contractor that provides information technology services for "your" benefit under a written contract with "you". "Outsourced IT service provider" services include, but are not limited to, hosting, security management, co-location, and "data" storage.

ZZ. "PCI Data Security Standard" (known as "PCI DSS") means the published data security standards in effect now, or as hereafter amended, which all merchants and processors must follow when storing, processing and transmitting cardholder "data".

AAA. "PCI DSS assessment" means a monetary fine or penalty assessed against an "insured" by an "acquiring bank" or "card association" as a result of a "security breach" or "privacy breach".

BBB. "Period of indemnity" means the period commencing with the earlier of the date of "notification" or the first publication of an "adverse media report" (whichever applies), and ending on the earlier of:

(1) The date that gross revenues are restored to the level they had been prior to "notification" or the first "adverse media report" (whichever applies); or

(2) One hundred eighty (180) consecutive days after the notice of "brand loss" is received by "us".

CCC. "Period of restoration" means the period of time that commences on the date when the interruption, degradation, or failure of an "insured computer system" began and ends on the earlier of:

(1) The date when the "insured computer system" is restored or could have been repaired or restored to the same condition, functionality, and level of service that existed prior to the "covered cause of loss" or the "act of cyber terrorism" with reasonable diligence, plus up to thirty (30) additional consecutive days after the restoration of the "insured computer system" to allow for restoration of "your" business; or

(2) One hundred twenty (120) consecutive days after the notice of "covered cause of loss" or "act of cyber terrorism" is received by "us".

DDD. "Pollutants" means any solid, liquid, gaseous, or thermal irritant or contaminant, including mold, smoke, vapor, soot, fumes, acids, alkalis, chemicals, odors, noise, lead, oil or oil products, radiation, asbestos or asbestos-containing products and waste, and any electric, magnetic, or electromagnetic field of any frequency. Waste includes, but is not limited to, material that is or is to be recycled, reconditioned, or reclaimed.

EEE. "Print media" means newspapers, newsletters, magazines, books, and literary works in any form, brochures or other types of publications, and advertising materials, including packaging, photographs, and digital images.

FFF. "Privacy breach" means any of the below, whether actual or alleged, but only if committed or allegedly committed by "you" or by others acting on "your" behalf for whom "you" are legally responsible, including "BPO service providers" and "outsourced IT service providers":

(1) A common law breach of confidentiality, infringement, or violation of any right to privacy, including, but not limited to, a breach of "your" privacy policy, false light, intrusion upon a person's seclusion, commercial misappropriation of name, person, or likeness, or public disclosure of a person's private information; or

(2) Any breach of privacy regulations, as they currently exist and as amended, associated with the confidentiality, access, control, and use of personally identifiable, non-public information, including, but not limited to:

(a) Health Insurance Portability and Accountability Act of 1996 (Public Law 104- 191), known as HIPAA, and related state medical privacy laws;

(b) Gramm-Leach-Bliley Act of 1999 (G-L-B), also known as the Financial Services Modernization Act of 1999;

(c) State and federal statutes and regulations regarding the security and privacy of consumer information;

(d) Governmental privacy protection regulations or laws associated with the control and use of personal information;

(e) Privacy provisions of consumer protection laws, including the Federal Fair Credit Reporting Act (FCRA) and similar state laws; or

(f) Title XIII, the Health Information Technology for Economic and Clinical Health Act ("HITECH"), of the American Recovery and Reinvestment Act of 2009 ("ARRA").

A series of continuing "privacy breaches" or related or repeated "privacy breaches" will be considered a single "privacy breach" and will be deemed to have occurred when the first of such "privacy breaches" occurred.

GGG. "Privacy breach response costs" means those reasonable and necessary fees and expenses which "you" incur, with "our" prior written consent, for the employment of a public relations consultant prior to or following the publication of an "adverse media report", if "you" reasonably consider such action is necessary in order to avert or mitigate any actual or potential material damage to "your" "reputation" or brands, which results or reasonably will result from the "adverse media report".

HHH. "Programming error" means an error which occurs during the development or encoding of a computer program, software, or application, which would, when in operation, result in a malfunction or incorrect operation of a "computer

system".

III. "Property damage" means injury to tangible property, including all resulting loss of use of that property, and loss of use of tangible property that is not physically injured. "Data" is not considered tangible property.

JJJ. "Public relations expenses" means reasonable and necessary expenses incurred by "you" to re-establish "your" "reputation" which was damaged as a direct result of an "adverse media report".

KKK. "Related hacking attack" means a "hacking attack" with:

(1) The same actor or a coordinated group of actors;

(2) The same "attack vector";

(3) The same vulnerability; or

(4) The common impacted vendor or group of impacted vendors as any other person or entity holding this cyber insurance coverage.

"Related hacking attack" does not include a "hacking attack" which deceives or manipulates any "insured" to execute subsequent, intervening actions in order to constitute or cause the "claim".

LLL. "Regulatory compensatory award" means a sum of money which an "insured" is legally obligated to pay as an award or fund for affected individuals, including a regulatory agency's monetary award to a third party, due to an adverse judgment or settlement arising out of a "government investigation". "Regulatory compensatory award" does not include a criminal penalty or fine issued by a regulatory agency of any kind, including federal, state, or local governmental agencies.

MMM. "Regulatory fines and penalties" means any civil fines and penalties imposed against an "insured" as a result of a "government investigation".

NNN. "Reputation" means the estimation of trust that patients, customers, or clients have in doing business with "you" or in purchasing "your" products or services.

OOO. "Retroactive date" means the date specified as such on this Endorsement, on or after which any "multimedia peril", "security and privacy wrongful act", "security breach", "privacy breach", "covered cause of loss", "cyber extortion threat", "act of cyber terrorism", or "adverse media report" must have taken place in order to be considered for coverage.

PPP. "Security and privacy wrongful act" means any of the following acts, whether actual or alleged, but only if committed or allegedly committed by an "insured":

(1) Failure to prevent or hinder a "security breach" that in turn results in:

(a) The alteration, copying, corruption, destruction, deletion, or damage to electronic "data" stored on an "insured computer system";

(b) Theft, loss or unauthorized disclosure of electronic and non-electronic confidential commercial, corporate, personally identifiable, or private information that is in "your" care, custody, or control;

(c) Theft, loss, or unauthorized disclosure of electronic and non-electronic confidential commercial, corporate, personally identifiable, or private information that is in the care, custody, or control of a "BPO service provider" or "outsourced IT service provider" that is holding, processing, or transferring such information on "your" behalf; provided, however, that the theft, loss or unauthorized disclosure

occurs while "your" written contract with such "BPO service provider" or "outsourced IT service provider" is in effect; or

(d) "Unauthorized use" of, or "unauthorized access" to, a "computer system" other than an "insured computer system".

(2) Failure to timely disclose a "security breach" affecting personally identifiable, nonpublic information or the failure to dispose of personally identifiable, nonpublic information within the required time period, in violation of privacy regulations in effect now or in the future;

(3) Failure to prevent the transmission of "malicious code" or "computer virus" from an "insured computer system" to the "computer system" of a third party;

(4) A "privacy breach";

(5) Failure to prevent or hinder participation by an "insured computer system" in a "denial of service attack" directed against "internet" sites or the "computer system" of any third party; or

(6) Loss of employee information.

QQQ. "Security breach" means any of the following, whether a specifically targeted attack or a generally distributed attack:

(1) "Unauthorized access" to, or "unauthorized use" of, an "insured computer system", including "unauthorized access" or "unauthorized use" resulting from the theft of a password from an "insured computer system" or from any "insured";

(2) A "denial of service attack" against an "insured computer system"; or

(3) Infection of an "insured computer system" by "malicious code" or the transmission of "malicious code" from an "insured computer system",

A series of continuing "security breaches", related or repeated "security breaches", or multiple "security breaches" resulting from a continuing failure of computer security will be considered a single "security breach" and will be deemed to have occurred when the first of such "security breaches" occurred.

RRR. "Special expenses" means reasonable and necessary costs and expenses which "you" incur to:

(1) Prevent, preserve, minimize, or mitigate any further damage to "digital assets", including the reasonable and necessary fees and expenses of specialists, outside consultants, or forensic experts "you" retain;

(2) Preserve critical evidence of any criminal or malicious wrongdoing;

(3) Purchase replacement licenses for "computer programs" because the copy protection system and/or access control software was damaged or destroyed by a "covered cause of loss" or an "act of cyber terrorism"; or

(4) Notify customers of a total or partial interruption, degradation in service, or failure of an "insured computer system" resulting from a "covered cause of loss" or an "act of cyber terrorism".

SSS. "Unauthorized access" means the gaining of access to a "computer system" by an unauthorized person or persons.

TTT. "Unauthorized use" means the use of a "computer system" by unauthorized persons or authorized persons in an unauthorized manner.

UUU. "Waiting period" means:

(1) With respect to Coverage Agreement F(2) and Coverage Agreement H, the eight (8) hour period which must elapse before "income loss", "interruption expenses" and/or "special expenses" may be payable. The "waiting period" applies to each "period of restoration".

(2) With respect to Coverage Agreement I, the two (2) week period which must elapse after "notification", or in the event of an "adverse media report", after publication of the first "adverse media report", before "brand loss" may be payable. The "waiting period" applies to each "period of indemnity".

VVV. "War" means the use of physical force by a sovereign state against another sovereign state (whether war be declared or not) or as part of a civil war, rebellion, revolution, insurrection and/or military or usurped power or confiscation or nationalization or requisition or destruction of or damage to property by or under the order of any government or public or local authority.

WWW. "We", "us" and "our" mean the company providing this coverage.

XXX. "Widespread event" means a "related hacking attack" that impacts forty (40) other persons or entities holding this cyber insurance coverage that is discovered, or should have been discovered, within ninety (90) days of the first such person or entity discovering, or when the first such person or entity should have discovered, such "hacking attack".

YYY. "You" and "your" mean the "named insured".

SECTION VI – NOTICE PROVISIONS

A. NOTICE OF A "CLAIM"

(1) The "insured" must give "us" written notice of any "claim" under Coverage Agreement A, Coverage Agreement B, Coverage Agreement C, or Coverage Agreement D no later than sixty (60) days after the "claim" is first made against the "insured".

(2) "You" must give "us" written notice of any "claim" under Coverage Agreement E, Coverage Agreement F, Coverage Agreement G, Coverage Agreement H, or Coverage Agreement I during the "endorsement period", but no later than sixty (60) days from the date any "insured" first discovers the event or incident giving rise to such "claim".

(3) "You" must provide "us" with copies of all documentation comprising the "claim" as well as any authorization, cooperation, or assistance as "we" may require.

(4) "We" will not be obligated to pay any amounts incurred prior to notice of a "claim" to "us" or amounts incurred without "our" prior written consent.

B. NOTICE OF A POTENTIAL "CLAIM"

If, during the "endorsement period", any "insured" first becomes aware of any facts or circumstances which could give rise to a "claim" covered under this Endorsement, and if the "insured" provides "us" with written notice during the "endorsement period" of:

(1) The details regarding such facts or circumstances;

(2) The nature of the loss incurred;

(3) The identity of the potential claimant(s) involved;

(4) The manner in which the "insured" first became aware of the facts or circumstances; and

(5) The consequences which have resulted or may result;

then any "claim" subsequently made arising out of such reported facts or circumstances will be deemed to be a "claim" first made on the date notice complying with the foregoing requirements was first received by "us".

SECTION VII - LOSS DETERMINATION

A. LOSS OF DIGITAL ASSETS

For any and all coverage provided under Coverage Agreement F(1), "digital assets loss" will be determined as follows:

(1) If the impacted "digital asset" was purchased from a third party, "we" will pay only the lesser of the original purchase price of the "digital asset" or the reasonable and necessary "digital assets loss".

(2) If it is determined that the "digital assets" cannot be replaced, restored, or recreated, then "we" will only reimburse the actual and necessary "digital assets loss" incurred up to such determination.

B. NON-PHYSICAL BUSINESS INTERRUPTION AND EXTRA EXPENSE AND CYBER TERRORISM

For any and all coverage provided under Coverage Agreement F(2) or Coverage Agreement H, "income loss" will be determined as the reduction of "your" income during the "period of restoration", which is:

"Your" net income (net profit or loss before income taxes) that would have been reasonably projected, but which has been lost directly as a result of a total or partial interruption, degradation in service or failure of an "insured computer system" caused directly by a "covered cause of loss" or an "act of cyber terrorism", whichever applies. The revenue projection will take into account the prior experience of "your" business preceding the date of the "covered cause of loss" or the "act of cyber terrorism" and the probable experience had no "covered cause of loss" or "act of cyber terrorism" occurred. Revenues include the amount of money paid or payable to "you" for goods, products, or services sold, delivered, or rendered in the normal course of "your" business. Revenue projection will be reduced by the extent to which "you" use substitute methods, facilities, or personnel to maintain "your" revenue stream. "We" will take into consideration "your" documentation of the trends in "your" business and variations in, or other circumstances affecting, "your" business before or after the "covered cause of loss" or the "act of cyber terrorism", which would have affected "your" business had no "covered cause of loss" or "act of cyber terrorism" occurred; and

(2) Any fixed operating expenses (including ordinary payroll) incurred, but only to the extent that such operating expenses must continue during the "period of restoration".

C. BRANDGUARD

For any and all coverage provided under Coverage Agreement I, "brand loss" will be determined as follows:

The revenue projection required to calculate "brand loss" will take into account the prior experience of "your" business preceding the date of the "adverse media report" or "notification", whichever applies, and the probable experience had no "adverse media report" been published or "notification" occurred. Revenues include the amount of money paid or payable to "you" for goods, products, or services sold, delivered, or rendered in the normal course

of "your" business. Revenue projection will be reduced by the extent to which "you" use substitute methods, facilities, or personnel to maintain its revenue stream. "We" will take into consideration "your" documentation of the trends in "your" business and variations in, or other circumstances affecting, "your" business before or after the "adverse media report" or "notification", which would have affected "your" business had no "adverse media report" been published or "notification" occurred. Any fixed operating expenses (including ordinary payroll) incurred will be considered in calculating "brand loss", but only to the extent that such operating expenses must continue during the "period of indemnity".

SECTION VIII – EXTENDED REPORTING PERIOD

A. AUTOMATIC EXTENDED REPORTING PERIOD

In the event of non-renewal or termination of this Policy for any reason other than non-payment of premium, "we" will provide an Automatic Extended Reporting Period of sixty (60) days in which "claims" otherwise covered by this Endorsement may be reported. Such limited reporting period will commence immediately upon termination or expiration of this Policy and will apply to:

(1) A "claim" under Coverage Agreement A, Coverage Agreement B, Coverage Agreement C, or Coverage Agreement D which:

(a) Arises out of an actual or alleged "multimedia peril", "security and privacy wrongful act", "security breach", or "privacy breach", whichever applies, that takes place or first commences on or after the "retroactive date", but prior to the expiration or termination of the Policy;

(b) Is first made against an "insured" during the "endorsement period", but prior to the Policy termination or expiration date; and

(c) Is reported in writing to "us" during the Automatic Extended Reporting Period.

(2) A "claim" under Coverage Agreement E, Coverage Agreement F, Coverage Agreement G, Coverage Agreement H, or Coverage Agreement I which:

(a) Arises out of an "adverse media report", "security breach", "privacy breach", "covered cause of loss", "cyber extortion threat", or "act of cyber terrorism", whichever applies, that takes place or first commences on or after the "retroactive date", but prior to the expiration or termination of the Policy; and

(b) Is reported in writing to "us" during the Automatic Extended Reporting Period.

B. SUPPLEMENTAL EXTENDED REPORTING PERIOD

(1) "You" shall have the option, upon payment of the required additional premium, to purchase a Supplemental Extended Reporting Period of 12 months, 24 months, or 36 months following the effective date of termination of coverage. The Supplemental Extended Reporting Period will extend the time during which "claims" otherwise covered by this Endorsement may be made and reported. If the Supplemental Extended Reporting Period is purchased, the Automatic

Extended Reporting Period will be included within the Supplemental Extended Reporting Period. Such Supplemental Extended Reporting Period will apply only to:

(a) A "claim" under Coverage Agreement A, Coverage Agreement B, Coverage Agreement C, or Coverage Agreement D which:

(i) Arises out of an actual or alleged "multimedia peril","security and privacy wrongful act", "security breach", or "privacy breach", whichever applies, that takes place or first commences on or after the "retroactive date", but prior to the expiration or termination of the Policy;

(ii) Is first made against an "insured" during the Supplemental Extended Reporting Period; and

(iii) Is reported in writing to "us" no later than sixty (60) days after the "claim" is first made against an "insured".

(b) A "claim" under Coverage Agreement E, Coverage Agreement F, Coverage Agreement G, Coverage Agreement H, or Coverage Agreement I which:

(i) Arises out of an "adverse media report", "security breach", "privacy breach", "covered cause of loss", "cyber extortion threat", or "act of cyber terrorism", whichever applies, that takes place or first commences on or after the "retroactive date", but prior to the expiration or termination of the Policy; and

(ii) Is reported in writing to "us" during the Supplemental Extended Reporting Period, but no later than sixty (60) days from the date any "insured" discovers the "adverse media report", "security breach", "privacy breach", "covered cause of loss", "cyber extortion threat", "act of cyber terrorism", or "brand loss" giving rise to the "claim".

(2) The right to purchase the Supplemental Extended Reporting Period shall terminate unless written notice of such election, together with full payment of the required additional premium due, is received by "us" no later than sixty (60) days after the effective date of non-renewal or termination of this Policy

(3) The additional premium for the Supplemental Extended Reporting Period shall be a percentage of the rates for such coverage in effect on the date the Policy was issued or last renewed, as set forth below:

(a) Twelve (12) months for 100% of annual premium;
(b) Twenty-four (24) months for 200% of annual premium; or
(c) Thirty-six (36) months for 300% of annual premium.

(4) If "you" do not elect to purchase a Supplemental Extended Reporting Period, then coverage under this Endorsement will terminate at the end of the Automatic Extended Reporting Period. If "you" elect to purchase a Supplemental Extended Reporting Period, coverage will terminate at the end of the Supplemental Extended Reporting Period.

(5) Once in effect, the Supplemental Extended Reporting Period may not be canceled, and the entire premium will be deemed fully earned. "We" will not be liable to return any portion of the premium to "you" for such Supplemental Extended Reporting Period. If "you" have not paid the required additional premium for the Supplemental Extended Reporting Period when due, then such Supplemental Extended Reporting Period shall be void.

C. All terms and conditions of this Endorsement, including the limits of insurance, will continue to apply during any extended reporting period.

D. The existence of any extended reporting period will not increase or reinstate the limits of insurance shown in the Schedule.

SECTION IX – OTHER INSURANCE

The coverage provided by this Endorsement will be excess insurance over any other valid and collectible insurance available, including any self-insured retention or deductible portion thereof, whether such insurance is stated to be primary, pro rata, contributory, excess, contingent, or otherwise, unless such insurance specifically applies as excess insurance over the insurance provided under this Endorsement.

SECTION X – ARBITRATION

Notwithstanding any other provision of this Endorsement or the Policy, any irreconcilable dispute between "us" and an "insured" is to be resolved by arbitration in accordance with the then current rules of the American Arbitration Association, except that the arbitration panel shall consist of one arbitrator selected by the "insured", one arbitrator selected by "us", and a third independent arbitrator selected by the first two arbitrators. Judgment upon the award may be entered in any court having jurisdiction. The arbitrator has the power to decide any dispute between "us" and the "insured" concerning the application or interpretation of this Endorsement. However, the arbitrator shall have no power to change or add to the provisions of this Endorsement. The "insured" and "us" will share equally in the cost of arbitration.

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